

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

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Present: Sh. Pardeep Yadav, Senior Prosecutor, Sh. Lokender Singh Raghav, Standing Government Counsel for the complainant -SFIO and Sh.Abhinav Deshwal, Legal Consultants

None for accused Nos. **1** to **70** companies

None for accused Nos. **71** to **78** companies

Accused No.**79** company, represented through accused No.115 Vivek Hari Vyasi who is on interim bail.

Accused Nos. **80** company, represented through accused Naveen Kumar (No. **139**).

Accused Nos. **81** and **82** companies, represented through accused Surender Singh (No. 140) who is on interim bail

None for accused No.83, 84 & 85 company

Accused Nos. **86**, **87** and **88** companies, represented through accused Ravi Tak (No. **166**) (**sought exemption today**)

None for accused No. **89** company

Accused Nos. **90** to **93** companies, represented through accused No.115 Vivek Hari Vyasi who is on interim bail

Accused Nos. **94** to **97** companies, represented through Shri Rahul, AR, in person

Accused No. **98** company, represented through Shri Naresh Kumar, AR, in person

Accused Nos. **99** and **100** companies, represented through accused Raj Kumar Modi (No. **176**) who is on interim bail

None for accused No.**101**, **103**, **107**

Accused No. **102** company, represented through Shri Deepak, AR, in person

Accused No. **104** company, represented through Shri Vicky, AR , in person

Accused No. **105** company represented through Shri Anoop, AR , in person

Accused No. **106** company represented through Shri Kashi Nath Jha, AR, in person

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Accused **108, 110, 111, 112 companies** represented through ARrs (sought exemption today), represented by Sh Ranjak Kumar, Advocate

Accused No. **109** company, represented through Shri Vikas Paul, AR, in person

Accused No. **113**/Mukesh Modi, in custody (not produced before Court by the concerned jail authority)

Accused No.**114** Rahul Virendra Modi in custody, (not produced by the concerned jail authority).

Accused No.115 Vivek Harivyasi on interim bail, represented by Sh Vivek Tanwar, Advocate

Accused No.**117** Priyanka Modi (**sought exemption today**), represented by Sh Manl Mittra, Advocate

Accused Vinay Kumpawat (No. 119) already declared proclaimed person vod 27.07.2022

Accused No. 120/Vibhav Lodha is on bail in this case, but in custody in other case (**not produced** before the Court)

Proceedings qua accused No.122 Virender Modi stood abated vide order dated 13.11.2024

Accused No. **123**/Rohit Modi and No.**126**/Bharat Modi, who are on bail in this case but in custody in other case, (**not produced** before the Court by concerned jail authority)

Accused No. **125**/Rajeshwar Singh, who is on bail in this case but in custody in other case, produced before the Court through VC by concerned jail authority at Jodhpur

Sh J.H.Khan, Advocate for accused Jainam Rathod (No.**130**)

Acused No. **131**/Ishwar Singh Sindal, who is on bail in this case but in custody in other case (**not produced** before the Court)

Accused No.**134**/Vivek Purohit, who is on bail in this case but in custody in other case (**not produced** before the Court)

Accused No. No.135/ Siddharth Chauhan already declared proclaimed person/offender vide order dated 22.07.2025

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Accused Akshat Singh (No. **136**) on bail in person,
represented by Shri Amol Gupta, Advocate

Accused Shinder Pal Singh (No. **137**) already **declared
proclaimed** person vod 03.05.2024

Accused Naveen Kumar (No.139) on bail, represented by Sh
Ishaan Mukherjee and Sh Vinayak Gupta, Advocates

Accused Surender Singh (No. **140**) on interim bail, in person

Accused No. **142**/Bharat Das Vaishnav, who is on bail in this
case but in custody in other case (**not produced** before the
Court by concerned jail authority)

Accused No.**143**/Sudhir Punia in custody, produced through
VC by the concerned jail authority

Accused Joydeep Das Gupta (No.**144**) and Lovekush
Sharma (**No.145**), on bail, but granted personal
exemption(s) till further orders vide order dated 22.11.2019,
represented through Shri Vishal Gupta, Advocate.

Accused Leena Hariviyasi (**No. 146**) on bail, exempted till
further orders vide order dated 03.05.2024

Accused Vimal Sanwermal Sharma(**No.147**), on bail, in
person.

Accused Avanish Kumar Tyagi (**No.148**) on bail, but
granted personal exemption till further orders vide order
dated 22.11.2019, represented through Shri Vishal Gupta,
Advocate.

Accused Vijay Shukla (No. **149**), on interim bail, in person

Accused Poonam Madan(**No. 151**) on bail, but granted
personal exemption till further orders vide order dated
22.11.2019, represented through Shri Vishal Gupta,
Advocate.

Accused Bharat Kumar Mardia (**No. 154**) on bail,
exempted permanently, represented by Sh. Peeyush Jain,
Advocate.

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Proceedings qua accused Mahendra Kumar Tak (155) stood abated vide order dated 25.03.2022.

Accused Praveen Maheshwari (No.156) and Rajeev Maheshwari (No.157) on bail, but exempted from personal appearance till further order(s) vide order 31.01.2020, represented through Shri Piyush Jain, Advocate

Accused Megha Chauhan No.(No. 163 **sought exemption today**) accused Indu Tak (No. 164 **sought exemption today**), accused Ravi Tak (No. 166 **sought exemption today**) on bail, represented by Sh Neeraj Dev Gaur, Advocate.

Accused Rajeev Verma (No.167), Sushil Maloo (No.168) and Rajendra Singh Bhandari (No.169) on bail, but granted permanent exemption vide order(s) dated 04.09.2019.

Accused Sudhir Mehta(No170) (**sought exemption today**), on bail, represented by Sh Neeraj Dev Gaur, Advocate.

Accused No.171 Raj Kumar Bohra permanently exempted till further orders.

Accused No.173 Peeyush Aggarwal on bail, in person, represented by Sh Prashant Yadav, Advocate

Accused Paramvir Singh Sangwan(No.174) on bail, but granted personal exemption till further order vide order dated 19.02.2021, represented by Shri Dinesh Kumar, Advocate.

Proceedings qua accused Vijay Jindal (175) stood abated vide order dated 25.03.2022.

Accused Raj Kumar Modi (No. 176), on interim bail, in person.

Accused No.177/Rajiv Kumar Rana in custody, produced through VC by the concerned jail authority

Acused Mahesh Dutt Sharma(No.178), on bail, in person.

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Accused Ichchhita Dungarwal (No.180) and Neha Kataria (No.181) permanently exempted till further orders vod 22.11.2019, represented by Sh Nitin Desodya, Advocate

Accused Mahesh Kumar Tak (No. 187) (**sought exemption today**), on bail, represented by Sh Neeraj Dev Gaur, Advocate.

No report from Superintendent, Central Jail, Jodhpur (Rajasthan) has been received, pursuant to directions issued on the last date of hearing. Accused No.113 Mukesh Modi who is in custody in this case and was confined in Jodhpur jail (Rajasthan) has not been produced before this Cour. On the last hearing, Naib Court of this Court had informed that concerned jail authority apprised that said accused had been released on interim bail till 15.08.2025, however Ld. Senior Prosecutor for the SFIO informed the Court that this accused had not been granted any interim bail in the instant matter and instead, regular bail application of the accused is stated to be pending adjudication before Hon'ble High Court of Punjab and Haryana.

As per records, vide order dated 27.02.2025 passed by this Court, it was recorded that accused No.113 Mukesh Modi, who is in custody in this case and was confined in Jodhpur jail (Rajasthan), was stated to have been released on interim bail obtained by said accused pertaining to a case there, however in the instant matter regular bail application of said accused is stated to be pending adjudication before Hon'ble Punjab and Haryana High Court and accordingly, report was sought from Superintendent, Central Jail, Jodhpur (Rajasthan) in this regard. Despite reminders, no report has been received from the concerned quarter. Not only this, again on 22.07.2025 Naib Court of this Court informed that concerned jail authority apprised him that said accused had been released on interim bail. It is a matter of record that said accused is continuing in custody in the present case and no interim bail or regular bail had been granted to said accused in the present case and in fact, regular bail

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application of said accused is stated to be pending before Hon'ble Punjab and Haryana High Court and it is beyond comprehension as to how the Superintendent, Central Jail, Jodhpur (Rajasthan) had released the said accused and thus, again report was sought from concerned Superintendent, but he has failed to ensure compliance of directions of this Court and it apparently transpires that concerned Superintendent, Central Jail, Jodhpur (Rajasthan), in cahoots with the accused, had been extending undue benefit to said accused and had unlawfully released him from custody, without ensuring as to whether said accused had been granted any interim or regular bail in the present matter. Accordingly, this Court is left with no other option except to seek report from worthy Home Secretary, Government of Rajasthan, who may seek report from the concerned authority and then submit a report to this Court qua lapses and delinquent behavior on the part of concerned Superintendent and thus, the concerned authority is directed to submit a report on or before the adjourned date i.e. **06.11.2025**.

A copy of this order be sent to Home Secretary, Government of Rajasthan for necessary information and compliance. Needless to mention that if no response is received from the concerned quarter, then this Court shall be constrained to make a report to Hon'ble Punjab and Haryana High Court, so as to initiate contempt proceedings against the concerned authorities.

2. Accused No. 114/Rahul Virendra Modi, accused No. **134**/Vivek Purohit and accused No. **120**/Vibhav Lodha, who are on bail in this case, but in custody in other case, not produced by concerned jail authority. Production warrants of the said accused be issued directing concerned jail authority to produce said accused before the Court through VC on the adjourned date if they remains custody in other case.

3. Accused No. **131**/Ishwar Singh Sindal on bail in this case but custody in other case, not produced by concerned jail authority. His production warrants be issued directing Superintendent, concerned jail

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Jodhpur, Rajasthan to produce the said accused before the Court through VC on the adjourned date.

4. Accused No.143/Sudhir Punia and accused No.177/ Rajiv Kumar Rana in custody, produced through VC from Bhondsi Jail and they be produced through VC on the adjourned date.

5. Accused No. 123/Rohit Modi, No.126/Bharat Modi, No. 142/Bharat Das Vaishnav, who are on bail in this case, but custody in other case(s), not produced before the Court through video conferencing by concerned jail authority. Production warrants of the said accused be issued directing concerned jail authority to produce said accused before the Court through VC on the adjourned date if they remains custody in other case.

6. Accused No. 125/Rajeshwar Singh, who is on bail in this case but in custody in other case, produced before the Court through video conferencing. Said accused be produced before the Court on the adjourned date, if he remains in custody in other case.

7. Separate applications seeking exemption from personal appearance(s) filed on behalf of accused accused No.117 Priyanka Modi, accused No.163 Megha Chauhan, accused No.164 Indu Tak, accused No.166 Ravi Tak, accused No.170 Sudhir Mehta and accused No.187 Mahesh Tak. The applications are supported by respective affidavit(s). For the reasons mentioned in the applications, the same stand allowed for today only. All these accused are directed to come present in person on the adjourned date except in emergent situation(s).

Separate applications seeking exemption from personal appearance(s) filed on behalf of Authorized Representative(s) of accused No.108, 110,111, and 112. For the reasons mentioned in the 87.

Arguments on two separate applications, seeking permanent exemption from appearance(s) before the court, moved on behalf of accused no. 117/Priyanka Modi and accused No.133 Prakash Chandra Purohit, not advanced. Arguments on these applications shall be heard on the adjourned date.

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8. Accused No.124/Neha Ghemawat and accused No.132/Meenakshi Modi moved separate application(s) seeking exemption from personal appearance. The applications(s) are supported by respective affidavit(s). For the reasons mentioned in the application(s), the same stand allowed for today only. Both these accused are directed to furnish certified copies of the orders passed by Hon'ble High Court of Rajasthan in the aforesaid matter, on the next date of hearing.

9. Today, two separate applications, seeking permanent exemptions from personal appearance of accused No.124 Smt. Neha Ghemawat and accused No.132 Smt.Meenakshi Modi, have also been moved. Copy given to learned Senior Prosecutor for SFIO/complainant. Reply, if any, be filed on the adjourned date.

10. No response to the application of applicant/accused Shiv Raj Sharma, seeking grant of pardon in this matter filed by complainant/SFIO. Complainant/SFIO shall file response to the application of applicant/accused Shiv Raj Sharma, seeking grant of pardon in this matter and necessary response be filed on or before **06.11.2025**.

11. Learned Senior Prosecutor is also directed to bring on record amended title, thereby reflecting the names of the persons who have been granted pardon, as prosecution witness, as per the order(s) passed by this Court.

12. Reply to the application of accused No.130 Jainam Rathod seeking permanent exemption from personal appearance, not filed by SFIO/complainant. Reply, if any, be filed on the adjourned date.

13. On the last date of hearing, accused No.135 Siddharth Chauhan was declared proclaimed person/offender in this case. Today, an application has been moved on behalf of said accused, thereby informing that vide order dated 10.09.2025 passed by Hon'ble Supreme Court in Civil Appeal No.4088 of 2025, interim stay on the

order of proclamation dated 22.07.2025, till the disposal of his petition bearing CRM-M-45417-2025 (which is petition preferred by said accused before Hon'ble High Court impugning order dated 22.07.2025 passed by trial Court), has been ordered and it has also been mentioned in the application that anticipatory bail petition of this accused is also now listed before Hon'ble High Court on 24.09.2025.

On a specific query, learned counsel, who moved the aforesaid application, has submitted that said accused is not present before the Court today. Be that as it may, at this stage the aforesaid application is, in a way, inconsequential so far as this Court is concerned, more so when accused has not come present.

14. On the last date of hearing, non bailable warrants were issued against accused No.152 Nazima Khan and accused No.153 Shabbir Khan, which remained unexecuted. Today, an application has been moved on behalf of these two accused, with a prayer to postpone further proceedings, including issuance of fresh NBW's against these accused, mainly on the ground that quashing petition bearing CRM-M-32075-2025 has been preferred on behalf of these accused and said petition is listed for hearing on 29.09.2025. On a specific query to learned counsel, who moved aforesaid application, he fairly conceded that no restraint order has so far been passed by Hon'ble High Court till date. Thus, in the absence any restraint order passed in favour of the aforesaid accused, it would be difficult for this Court to distinguish case of these accused from similarly situated co-accused qua whom coercive process has been issued, especially in view of order passed by Hon'ble Supreme Court whereby all such accused were directed to surrender before the Trial Court within a specified period but they have not ensured compliance of direction(s) passed by Hon'ble Supreme Court. Accordingly, aforesaid application stands disposed of.

15. Reply to the application(s) of accused No.124 Neha Ghemawat Modi and accused No.132 Meenakshi, seeking permanent

exemption from personal appearance, not filed. Replies, if any, be filed on the adjourned date.

16. Non bailable warrants issued against accused No.116 Nitin Rathore, accused No.118 Jinender Vyas, accused No.121 Paras Bolia, accused No.127 Abhay K.Shah, accused No.128 Manish Chaudhary, accused No.129 Deepak Shrimali, accused No.133 Prakash Chand Purohit, accused No.138 Gurbir Singh Sandhu, accused No.141 Aditya Sarda, accused No.152 Nazima Khan, accused No.153 Shabbir Khan, accused No.162 Naveen Chaudhary, accused No.165 Shyam Bihari Gupta, accused No.172 Saurabh Tak received back unexecuted. Let presence of all these accused be again secured by way of non-bailable warrants for **06.11.2025**.

17. Learned counsel representing accused No.130 Jainam Rathod submits that said accused, who is on bail in this case, has since been arrested in another case and presently lodged in Sabarmati Central Jail, Ahmedabad and prayer has been made for issuance of production warrants. In view of the same, production warrants of said accused be issued directing Superintendent, concerned jail to produce said accused before this Court on **06.11.2025** through video conferencing, if he remains in custody in other case and if he comes out on bail, then he shall come present in person on the adjourned date.

Date of order: 19.09.2025

naveen

Jagdeep Singh
ASJ/Gurugram
UID No.HR0125